SUPREME COURT OF INDIA

APPELLATE JURISDICTION · DIVISION BENCH (2 JUDGES)

Writ Petition (Civil) No. 400 of 2012 **CNR: SCIN010004002012**

Date: 15 April, 2014 *Citation: (2014) 5 SCC 438*

CORAM: Hon'ble K.S. Radhakrishnan & A.K. Sikri, JJ.

Petitioner: National Legal Services Authority (NALSA)

- VERSUS -

Respondent: Union of India & Others

DOMAIN: CONSTITUTIONAL LAW & GENDER IDENTITY **STATUS: Good Law (Binding Human Rights Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Gender identity is one of the most-fundamental aspects of life which refers to a person's intrinsic sense of being male, female, or transgender. Self-determination of gender is an integral part of personal autonomy and freedom under Articles 19(1)(a) and 21.

STATUTES APPLIED: Article 14, Article 15, Article 19(1)(a), Article 21

DISPOSITION: LEGAL RECOGNITION OF THIRD GENDER CONFERRED

EXECUTIVE RATIO SUMMARY:

Landmark ruling recognizing transgender persons as the 'third gender' and affirming their constitutional right to self-determine their gender identity without surgical or medical intervention.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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